EXHIBIT "D-1"

CONTRACT # _____

CONTRACTOR'S PARTIAL RELEASE OF RIGHT OF LIEN

KNOW ALL MEN BY THESE PRESENT: That IMC Construction, Inc. as contractor for the construction of improvements at _____ ("the Project"), for and in consideration of monies to be paid to and received by it for its partial performance of the construction Contract with _____ (hereinafter "Owner"), dated _____, said monies being in the amount of $_____ set forth within the Application and Certificate of Payment dated_____, does hereby release said amount from any and all claim or right of lien on said above described improvements and premises which may be available to the undersigned under the statues of the State of New Jersey, for work performed on said Project. Subject to the penalties of the law, the undersigned certifies that said monies shall be applied to payment of any and all subcontractors' materialmen, or suppliers of the undersigned in connection with and under direction that said payments be applied to accounts pertaining to the Project.

Contractor further represents and warrants that it has previously invoiced Owner for labor, material and services supplied pursuant to the contract in the aggregate amount of $_____ as set forth within the aforesaid Application and Certificate for Payment. Contractor warrants that it has been paid $_____ to date and Contractor does hereby release said amount from any and all claim of right of lien on said above described improvements and premises which may be available to the undersigned under the statutes of the State of New Jersey for work performed on said Project.

DATED: _____

IMC Construction, Inc.
(CONTRACTOR NAME)

BY: _____

_____
NAME AND TITLE

STATE OF: _____

COUNTY OF: _____

The foregoing instrument was acknowledged before me this_____ day of _____, by _____, on behalf of the contractor.

_____
Notary Public

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EXHIBIT "D-2"

FINAL WAIVER AND RELEASE OF LIENS AND CLAIMS

STATE OF _____

COUNTY OF _____

Whereas, the undersigned, _____ of IMC Construction, Inc. ("Company") who has furnished certain materials, equipment, services and/or labor for the project known as _____ ("Project"), which is located at _____ _____ ("Property"), and is owned by _____ ("Owner");

Now therefore, acknowledging receipt of the sum of $_____, the Company waives and releases any and all claims, demands, actions, causes of action or other rights against the owner and the Property, at law, under a contract, in tort, equity or otherwise, and any and all liens or claims of liens or any right against any labor and/or material payment bond it has, may have had or may have in the future upon the foregoing described Property or in relation to the Company's performance of work on or the furnishing of equipment, services, and/or labor for the contract totaling $_____.

This Waiver and Release applied to all facts, acts, events, circumstances, changes, constructive or actual delays, accelerations, extra work, disruptions, interferences and the like which have occurred, or may be claimed to have occurred prior to the date of this Waiver and Release, whether or not known to the Company at the time of execution of this Waiver and Release.

The Company acknowledges that this Waiver and Release is in substantial conformity with the requirements of applicable law and shall be binding and conclusive against the Company for all purposes, subject only to payment in full of the amount set forth above.

Given under hand and seal this _____ day of _____, 20___.

IMC Construction, Inc.
Company

Signed_____(SEAL)
By:_____

Title:_____

Before me the undersigned, a Notary Public for _____County, State of _____, personally appeared _____, and acknowledged the execution of this instrument this _____ day of _____, 20____

_____
(SEAL)
Notary Public

EXHIBIT "D-3"

SUBCONTRACTOR FORM OF PARTIAL RELEASE OF CLAIMS AND LIENS

Project Description:

Property Description:

Owner:

1. The undersigned acknowledges all sums due on the project are paid to date and the undersigned waives and releases all rights he/she/it has to assert claims of any kind, including, without limitation, those arising from mechanic's lien, material man's lien, construction lien, or other lien rights, against IMC Construction, Inc., the Owner or any interest of the Owner or others in the Property, with respect to work performed or labor, materials, or equipment supplied through_____ ("Applicable Release Date")

2. As an inducement to making the requested payment, the undersigned represents and warrants the following:

(a) all payments due have been made to date, less retainage, for all work performed and labor, materials, and equipment supplied in connection with the Project through the Applicable Release Date; and

(b) there are no outstanding claims with respect to work performed on the Project, or labor, materials, or equipment supplied for the Project through the Applicable Release Date, except for those listed on the reverse of this page; and

(c) the undersigned has not assigned any claim or lien right against the owner or its property to any other person or entity; and

(d) all persons or entities from whom the Subcontractor obtained labor, materials, or equipment for the Project have been paid in full and no such person or entity has any claim or lien against the Project for work performed on the Project, or

labor, materials, or equipment supplied for the Project, through the Applicable Release Date; and

(e) no security interest has been given or executed by the undersigned in connection with any materials or equipment placed upon or installed in the Project.

Company Name: _____

Address: _____

_____

BY: _____

(Signature)

Typed Name and Title: _____

SWORN TO AND SUBSCRIBED BEFORE ME THIS

_____ day of _____. 20___

_____ NOTARY PUBLIC

EXHIBIT "D-4"

FINAL RELEASE OF LIENS AND GENERAL INDEMNITY

SUBCONTRACTOR'S GENERAL RELEASE AND INDEMNITY AGREEMENT

KNOW ALL MEN BY THESE PRESENTS, that _____ (the "SUBCONTRACTOR"), in consideration of final payment on the _____ _____ ("Project"), and for other good and valuable consideration, receipt of which is acknowledged by signing this General Release and Indemnity Agreement, has released and discharged, for itself, its successors and assigns, and all of its related and subsidiary corporations, _____ ("Owner") and their respective officers, directors and employees, successors and assigns of such corporations, of and from all actions and causes of actions, suits, debts, contracts, agreements, claims and demands of whatsoever kind of nature, in law or equity, known or unknown, foreseen and unforeseen, which the undersigned now ha or may hereafter have, arising out of, relating to, on in connection with all labor, materials and equipment furnished and delivered pursuant to the Agreement dated _____, between IMC Construction, Inc. and SUBCONTRACTOR, as modified, relating to, arising out of, or in connection with the Project, which the undersigned ever had, now has, or any of them hereafter can, shall, or may have, for, or by reason of any cause, matter or thing whatsoever, from the beginning of the world to the date of these presents.

The undersign does hereby release waive and forever relinquish unto the Owner and IMC Construction, Inc., all stop notice rights, liens, demands and claims of lien, whatever which the undersigned now has, might or could hereafter have against said Owner, IMC Construction, Inc. or on or against the Project.

The undersigned assumes entire responsibility and liability for any and all claims and/or damages of any nature or character whatsoever for which SUBCONTRACTOR and/or SURETY, if any, shall be liable under the Contract Documents, or by operation of law, with respect to the Project covered by the aforementioned Agreement, and agrees to defend, indemnify and save OWNER and LENDER harmless from and against all claims, demands, liabilities, interests, loss, damage, attorney's fees, costs and expense of whatsoever kind or nature, whether for property damage or personal injuries (including death) to any and all person, whether employees of OWNER and LENDER, or otherwise caused or occasioned thereby, resulting therefrom, arising out of or therefrom, or occurring in connection therewith or as imposed by law, limited to the scope of the subject matter of said subcontract. The undersigned further agrees to defend, indemnify and save OWNER and LENDER and IMC Construction, Inc. harmless from any and all manner of claims, damages or suits, including all costs and expenses (including attorneys' fees) which OWNER and/or LENDER may incur or sustain in connection with same.

IN WITNESS WHEREOF, the undersigned has caused this General Release and Indemnity Agreement to be signed this _____ day of _____, 20___.

_____

(SUBCONTRACTOR)

By:_____

Title:_____

EXHIBIT K

CONSTRUCTION MANAGER'S CONSENT AND ASSIGNMENT OF SUBCONTRACTS

THIS CONSTRUCTION MANAGER'S CONSENT AND ASSIGNMENT OF SUBCONTRACTS (this "Assignment") is made this 20th day of March, 2023, by International Management Consultants, Inc. d/b/a IMC Construction ("Construction Manager"), with a mailing address at 3 Great Valley Parkway, Suite 200, Malvern, Pennsylvania 19355, to LAKELAND BANK ("Lender"), with a mailing address at 250 Oak Ridge Road, Oak Ridge, New Jersey 07438.

WITNESSETH THAT:

Pursuant to a contract dated [_____] (the "Contract") between Construction Manager and CSH West Orange, LLC ("Owner"), Construction Manager has agreed to perform certain services, as Lender of the Owner, in connection with Owner's proposed development of a senior housing facility containing 83 units (a 92-bed assisted living and memory care facility) on a parcel of land containing approximately 3.3 acres located at 609 Eagle Rock Avenue, Township of West Orange, Essex County, New Jersey (such construction activities, collectively, the "Project"). According to representations by the Owner, the Lender has agreed to make a loan to Owner in the maximum principal amount of $27,577,019 (the "Loan") pursuant to the terms of a loan and security agreement executed or about to be executed by Owner and Lender (as the same may be amended, modified, supplemented or restated from time to time, the "Loan Agreement") for the purpose of financing Owner's development and improvement of the Project. Additional terms are defined on Exhibit A, attached hereto and made a part hereof.

As represented to Construction Manager by Owner, as security for repayment of the Loan, Owner has executed and delivered or is about to execute and deliver to Lender a General Collateral Assignment (the "General Collateral Assignment"), pursuant to which Owner assigns to Lender, among other things, all of Owner's right, title and interest in and to the Contract. As a condition to advancing any proceeds of the Loan to Owner, Lender has required that Construction Manager execute and deliver this Assignment.

NOW THEREFORE, Construction Manager, in consideration of the Lender's agreement to extend the Loan to Owner and as security for all of Construction Manager's obligations under the Contract, hereby represents and warrants to and agrees with Lender as follows:

1. Construction Manager acknowledges Owner has advised Construction Manager that Owner has or will execute the General Collateral Assignment in favor of Lender, assigning in favor of Lender all of Owner's right, title and interest in and to the Contract, and Construction Manager hereby consents to the same. In addition, to the extent assignable, upon Construction Manager's default under the Contract, Construction Manager hereby conveys, transfers, assigns and sets over unto Lender all of Construction Manager's right, title, interest and privilege in, to and under any and all contracts and agreements, whether now in existence or hereafter entered into as Lender of the Owner: (a) with contractors, architects, engineers and other design professionals (including all rights of Construction Manager to all plans and specifications prepared with respect to the Project) and other suppliers of services or materials relating to the construction or operation of the Project; and (b) providing for payments to be made to Construction Manager by any person or entity in connection with the Project (including, without limitation, all warranties, guaranties and indemnities now or hereafter made by any person or entity relating to the Project).

2. Lender, through its authorized representatives, shall at all reasonable times after reasonable notice, have access to the work to be performed under the Contract for purpose of making inspections, and no material extra work or changes (by altering, adding to or deducting from the work) shall be undertaken under the Contract except pursuant to a written authorization from Owner (as defined in the Contract) and Lender; nor shall the Contract otherwise be amended except with the prior written consent of Lender. It is understood that the Owner shall be responsible for obtaining all such approvals, authorizations, and consents of the Lender. Notwithstanding the foregoing, Lender's consent shall not be required for (but Lender shall promptly receive copies of) any change orders contemplated after the date of this Assignment that do not (i) extend the date for completion of the Project, (ii) involve an expenditure of $200,000 or more as to any individual change order, or (iii) involve, as to the aggregate of all change orders, an expenditure in excess of $1,000,000.

3. Construction Manager certifies that (i) the Contract is unmodified and in full force and effect, (ii) all fees and other sums required to be paid as of the date hereof under the Contract have been paid, (iii) to its knowledge, neither Owner nor Construction Manager is in default of the Contract, (iv) Construction Manager will not assign its rights and obligations under the Contract without the prior written consent of Lender and (v) it has no knowledge of any prior assignment of the Contract by Owner.

4. Construction Manager agrees to give to Lender at the address set forth in the caption to the attention of Roberto Camacho, copies of written notice of any material defaults by Owner under the Contract which Contractor sends to Owner, and agrees to give Lender, at the sole option of Lender, the right to cure any material defaults by Owner under the Contract for a period of twenty (20) days after receipt by Lender of notice of such default (or such longer period after receipt of such notice, as mutually agreed to by the parties, as may be necessary to cure such default), during which period Construction Manager shall forbear exercising any right or remedy it may have with respect to such default; provided, however, that in no event shall Lender be obligated to cure any default by Owner under the Contract. Construction Manager shall not terminate the Contract because Owner becomes bankrupt or insolvent, provided Construction Manager has and continues to receive all sums due in accordance with the terms of the Contract.

5. Construction Manager agrees, upon the request of Lender, to complete construction of the work described in the Contract in accordance with the terms of the Contract, for the benefit of Lender, its successors and assigns, in the event of default by Owner under the Loan Agreement provided Construction Manager receives, or has received, and continues to receive, all sums due under the Contract as of the date of such request and thereafter.

6. Construction Manager agrees that Lender shall at all times have the right, but not the obligation, to enforce, at Owner's sole cost and expense, the performance or observance of each and every covenant, obligation and condition of the Contract to be performed or observed by Construction Manager. Furthermore, in the event of any default by Owner occurring and continuing under the Loan Agreement, as confirmed to Construction Manager by written notice from Lender, Construction Manager agrees that Lender may elect to succeed to and exercise all of Owner's rights and privileges and to assume all of Owner's obligations under the Contract accruing from and after such notice and that Construction Manager shall be absolutely protected against Owner in proceeding in reliance on such notice from Lender.

7. Construction Manager agrees that Lender shall have no liability or obligations to Construction Manager either under the Contract, the General Collateral Assignment, or otherwise, for any act or omission occurring prior to such time as Lender elects in writing to assume the future obligations of Owner under the Contract, and then only with respect to obligations accruing from and after such assumption. Notwithstanding the foregoing, Lender agrees that Construction Manager shall not be obligated to perform any services or complete construction of the work unless and until Construction Manager has received all sums then due, as of the date of the Lender's election, under the terms of the Contract.

8. Construction Manager agrees that during the course of construction and after receipt of notice of Owner's default under the Loan Documents, Construction Manager shall deliver to Lender copies of such waivers and releases of liens by Construction Manager and received by Construction Manager by trade contractors engaged by Construction Manager, as provided for in the Contract. Prior to or simultaneously with final payment under the Contract or after Construction Manager has received notice of Owner's default under the Loan Documents, Construction Manager shall deliver to Owner, with a copy to Lender, a complete release of liens (or copy thereof) signed by Construction Manager and all its direct subcontractors and materialmen, if any.

9. Construction Manager agrees that it will use its reasonable commercial efforts to include in each subcontract hereafter executed between Construction Manager, acting as Lender of Owner, and a subcontractor performing work to be performed in connection with the Project shall include a provision whereby the subcontractor agrees that: (a) such subcontractor agrees to execute and deliver to Construction Manager, Owner and Lender, prior to final payment, a complete release of liens; (b) if Construction Manager, acting as Lender of Owner, or Owner materially defaults under the subcontract, the subcontractor shall give written notice to Owner and Lender specifying the material default and the steps necessary to cure such default, and Owner and/or Lender shall have the right to cure any material defaults by Construction Manager or Owner under such subcontract for a period of thirty (30) days after receipt of such notice (or such longer period after receipt of such notice as may be necessary to cure such default) during which period the subcontractor shall forbear exercising any remedy it may have with respect to such default, it being understood that Owner and Lender shall have no obligation to cure any such defaults, and (c) following a default by Construction Manager under the Contract, at the request of Owner and/or Lender, the subcontractor will continue performance under the subcontract in accordance with its terms so long as the subcontractor shall be paid in accordance with the subcontract for all work, labor and materials furnished pursuant thereto, and, to the extent such contract is not freely assignable by Owner, will enter into a new subcontract with a contractor to be approved by Owner and Lender upon substantially the same terms and conditions as the original subcontract. Construction Manager further agrees to furnish Lender upon request with a copy of each fully executed subcontract.

10. Any notices to be sent by Construction Manager hereunder to Lender shall be in writing and sent via registered or certified mail, return receipt requested, or by express courier service guarantying overnight delivery, in either case to the address set forth in the caption or to such other address as Lender may hereafter designate by appropriate written notice to Construction Manager.

11. Nothing herein contained shall be construed to impose upon any of the Secured Parties any duty to advance funds to Owner except upon and subject to the terms of the Loan Agreement, or to see to the application of the proceeds of the Loan. Construction Manager acknowledges that it has

been informed that the Secured Parties are obligated under the Loan Agreement only to Owner and to no other person or entity.

12. This Assignment shall be binding upon Owner and Construction Manager, and their respective successors and assigns, and shall inure to the benefit of the Lender, and its successors and assigns.

13. This Assignment shall be governed by the laws of the State of New Jersey.

[signature page follows]

IN WITNESS WHEREOF, Construction Manager has caused this Assignment to be duly executed, under seal, the day and year first above written.

Construction Manager:

INTERNATIONAL MANAGEMENT CONSULTANTS, INC. d/b/a IMC CONSTRUCTION

By: _____
Name: Michael Lloyd
Title: President

Consented and Agreed to by Owner:

CSH WEST ORANGE, LLC

By:_____
Name: Fred Moon
Title: Vice-President

EXHIBIT A

ADDITIONAL DEFINED TERMS

"Banking Services" means each and any of the following bank services provided to Borrower by the Lender or an Affiliate: (a) commercial credit cards, (b) stored value cards and (c) treasury and/or cash management services (including controlled disbursement, automated clearinghouse transactions, return items, overdrafts and interstate depository network services).

"Banking Services Obligations" means any and all obligations of Borrower, whether absolute or contingent and howsoever and whenever created, arising, evidenced or acquired (including all renewals, extensions and modifications thereof and substitutions therefor) in connection with Banking Services.

"Affiliate" means, with respect to a specified Person, another Person that directly, or indirectly through one or more intermediaries, Controls or is Controlled by or is under common Control with the Person specified, including, but not limited to, an entity in which such Person owns more than ten percent (10%) of the equity interests.

"Control" means the possession, directly or indirectly, of the power to direct or cause the direction of the management or policies of a Person, whether through the ability to exercise voting power, by contract or otherwise. "Controlling" and "Controlled" have meanings correlative thereto.

"Hedging Contracts" means interest rate swap agreements, interest rate cap agreements and interest rate collar agreements, or any other agreements or arrangements entered into between the Borrower and any Lender (excepting interest rate cap agreements, which may be entered into with a Qualified Financial Institution) and designed to protect the Borrower against fluctuations in interest rates or currency exchange rates, in form and substance reasonably acceptable to Lender.

"Hedging Obligations" means, with respect to the Borrower, all liabilities of the Borrower to any Lender under Hedging Contracts.

"Indemnitee" means Lender and each Lender, and each Related Party of Lender or any Lender.

"Loan Documents" means the Loan Agreement, Promissory Note executed by Borrower in favor of Lender, the Mortgage and Security Agreement of even date with the Loan Agreement executed by Borrower in favor of Lender, as amended, modified, restated or replaced from time to time, the Assignment of Leases and Rents of even date with the Loan Agreement executed by Borrower in favor of Lender, as amended from time to time, any and all any Completion Guaranty Agreements, in the form of required by the Loan Agreement in favor of Lender, as amended from time to time, that certain Environmental Indemnity Agreement of even date with the Loan Agreement in favor of Lender, as amended from time to time, the Property Manager Subordination Agreement of even date with the Loan Agreement executed by property manager in favor of Lender, as amended from time to time, and any and all other documents now or hereafter executed by Borrower, CSH West Orange Lessee, LLC, any present or future, direct and indirect subsidiaries of Borrower, or any other guarantor of the Obligations or any portion thereof evidencing, guarantying, or securing or otherwise expressly stating it relates to the Obligations; provided, however, that Hedging Contracts between Borrower and Lender or Affiliate of Lender shall not constitute Loan Documents.

"Obligations" means all unpaid principal of and accrued and unpaid interest on the Loan, all accrued and unpaid fees and all expenses, reimbursements, indemnities and other obligations of Borrower to the Lender or any indemnified party arising under the Loan Documents, and all Banking Services Obligations.

"Person" means any natural person, corporation, limited liability company, trust, joint venture, association, company, partnership, government of the United States of America, any other nation or any political subdivision thereof, whether state or local, and any agency, authority, instrumentality, regulatory body, court, central bank or other entity exercising executive, legislative, judicial, taxing, regulatory or administrative powers or functions of or pertaining to government, or other entity.

"Qualified Financial Institution" means a financial institution with a long term corporate debt rating of at least "A" from Standard and Poor's Rating Group or a comparable rating by a rating agency acceptable to Lender.

"Related Parties" means, with respect to any specified Person, such Person's Affiliates and the respective directors, officers, employees, agents and advisors of such Person and such Person's Affiliates.

"Secured Obligations" means (i) all Obligations, (ii) all Banking Service Obligations and (iii) all Hedging Obligations, whether now existing or hereafter arising, of Borrower arising under or in connection with Hedging Contracts with Lender or its Affiliates,

EXHIBIT L

(To be provided)